BRENDAN NGEHSI NEWANFORBI
Plaintiff, Pro Se
1090 S Milpitas Blvd
Unit #304, Milpitas, CA 95035
Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

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EASTERN DISTRICT OF CALIFORNIA
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UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. DIANA CANDELARIA, in her individual capacity, and STEVE GORDON, Director of the California DMV, in his official capacity, Defendants.	Case No. 2:26-cv-00983-DC-CSK **NOTICE OF SUPPLEMENTAL AUTHORITY** *(Plaintiff's Objections to F&R Pending)*

Plaintiff Brendan Ngehsi Newanforbi, proceeding pro se, respectfully files this Notice of Supplemental Authority to bring to the Court's attention a decision issued after the filing of Plaintiff's Objections to the Magistrate Judge's Findings and Recommendations that bears directly on the pending objections.

THE SUPPLEMENTAL AUTHORITY

On June 29, 2026, the Honorable Ajay S. Krishnan, United States Magistrate Judge for the Northern District of California, issued an Order Re Motion to Proceed In Forma Pauperis in *Newanforbi v. Serrato*, Case No. 4:26-cv-05953-ASK (N.D. Cal.) (the "Serrato Order"). A true and correct copy of the Serrato Order is attached hereto as Exhibit A.

In the Serrato Order, Judge Krishnan (1) granted Plaintiff's application to proceed in forma pauperis, (2) screened the complaint pursuant to 28 U.S.C. section 1915(e), and (3) concluded that the operative complaint "is sufficient" to proceed past the section 1915 screening stage. The Court ordered the Clerk to issue summons and directed service of process by the United States Marshal.

RELEVANCE TO THE PENDING OBJECTIONS

The Serrato Order is relevant to this Court's de novo review of the Findings and Recommendations for the following reasons:

First, the Serrato Order arises from the same November 1, 2024 incident that is the factual foundation of this action. Although the instant case challenges the constitutional architecture of the DMV administrative per se hearing rather than the CHP officers' roadside conduct, both cases depend on the same predicate: whether the November 1, 2024 arrest was lawful and whether the sworn CHP report was truthful. Judge Krishnan evaluated the dashcam contradictions, the fabrication allegations, and the Penal Code section 851.6 detention certificate -- the same documentary record on which this action's "lawful arrest" and jurisdictional arguments rest -- and found them sufficient.

Second, the Findings and Recommendations in this case expressly relied on the pendency of recommended dismissal in a companion case as additional support for denying leave to amend. See F&R at 9 (citing *Newanforbi v. California*, 2026 WL 1067541 (E.D. Cal. Apr. 20, 2026)). The Serrato Order materially undermines that cross-reference. A coordinate Article III court has now examined substantially overlapping factual allegations and concluded they state a sufficient claim. The inference that Plaintiff's litigation pattern reflects frivolousness rather than legitimate pursuit of distinct legal theories is no longer sustainable.

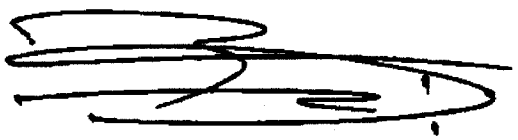
Third, the Serrato Order bears on the frivolousness determination underlying the denial of Plaintiff's in forma pauperis application. A claim has "an arguable basis . . . in law or in fact" within the meaning of *Neitzke v. Williams*, 490 U.S. 319, 325 (1989), when a coordinate federal court, presented with the same core allegations, finds them sufficient to survive section 1915 screening. The Findings and Recommendations' characterization of the First Amended Complaint as "frivolous or . . . without merit" cannot be reconciled with the Serrato Order's contrary conclusion.

Fourth, the Serrato Order is relevant to the "lawful arrest" predicate at issue in Objection II. If the November 1, 2024 arrest lacked a lawful basis -- as a coordinate federal court has now found plausible -- then the First Amended Complaint's allegation that Defendant Candelaria acted "in the complete absence of all jurisdiction" under *Mireles v. Waco*, 502 U.S. 9, 11-12 (1991), is at minimum non-frivolous and warrants development beyond screening.

Plaintiff does not contend that the Serrato Order is binding on this Court. Plaintiff respectfully submits, however, that a coordinate federal court's assessment of the same underlying factual record is persuasive authority that weighs against adoption of the Findings and Recommendations and supports the relief requested in Plaintiff's Objections.

Dated: July 7, 2026

Respectfully submitted,



BRENDAN NGEHSI NEWANFORBI

EXHIBIT A

United States District Court
Northern District of California

UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI,

Plaintiff,

v.

G. SERRATO,

Defendant.

Case No. 26-cv-05953-ASK

ORDER RE MOTION TO PROCEED IN FORMA PAUPERIS

Re: Dkt. No. 2

On June 17, 2026, Plaintiff Brendan Ngehsi Newanforbi filed this civil action and an application to proceed *in forma pauperis*. The Court **GRANTS** Mr. Newanforbi's application to proceed *in forma pauperis*. The Court now screens his complaint pursuant to 28 U.S.C. § 1915, and, for the reasons set forth below, concludes that the operative complaint is sufficient.

I. BACKGROUND

Mr. Newanforbi alleges that, in November 2024, two California Highway Patrol officers "subjected [him] to a false arrest, fabricated material statements in a sworn report, and forced an involuntary blood draw through a warrant procured by those fabrications" in relation to a traffic stop on Interstate 580 East in Livermore, Alameda County. Dkt. 1 at 1 ¶ 2. Based on this November 2024 incident, Mr. Newanforbi submitted a request to Defendant Serrato, the Captain and Commander of the California Highway Patrol ("CHP"), to certify his "Form I-918 Supplement B, U Nonimmigrant Status Certification[.]" *Id.* at 7-8 ¶ 25. Defendant Serrato denied Mr. Newanforbi's certification request on the grounds that the November 2024

> incident does not meet the standard of qualifying criminal activity identified in Section 679.10 of the California Penal Code (PC), nor does it meet the standards of the Immigration and Nationality Act Section 101(a)(15)(U)(iii). Additionally, this review found no substantially similar qualifying criminal activity as defined in Section 679.10(d) PC.

Id. at 8-9 ¶ 29. Mr. Newanforbi brings this civil rights action against Defendant Serrato for denial of his certification request, accusing Defendant Serrato of violating his substantive and procedural due process rights under the Fourteenth Amendment and retaliating against him in violation of the First Amendment.

II. LEGAL STANDARD

The *in forma pauperis* statute provides that the Court shall dismiss the case if at any time the Court determines that the allegation of poverty is untrue, or that the action (1) is frivolous or malicious, (2) fails to state a claim on which relief may be granted, or (3) seeks monetary relief against a defendant who is immune from such relief. 28 U.S.C. § 1915(e)(2).

A complaint is frivolous under § 1915 where the Court lacks subject matter jurisdiction. *See Castillo v. Marshall*, 207 F.3d 15, 15 (9th Cir. 1997) (citation omitted); *see also Pratt v. Sumner*, 807 F.2d 817, 819 (9th Cir. 19987) (recognizing the general proposition that a complaint should be dismissed as frivolous on § 1915 review where subject matter jurisdiction is lacking).

A complaint may also be dismissed for failure to state a claim, because § 1915(e)(2) parallels the language of Federal Rule of Civil Procedure 12(b)(6). *Lopez v. Smith*, 203 F.3d 1122, 1126-27 (9th Cir. 2000). The complaint, therefore, must allege facts that plausibly establish the defendant's liability. *See Bell Atl. Corp. v. Twombly*, 550 U.S. 544, 555-57 (2007). When the complaint has been filed by an unrepresented plaintiff, courts must "construe the pleadings liberally . . . to afford the petitioner the benefit of any doubt." *Hebbe v. Pliler*, 627 F.3d 338, 342 (9th Cir. 2010) (cleaned up). Upon dismissal, unrepresented plaintiffs proceeding *in forma pauperis* must be given leave to "amend their complaint unless it is absolutely clear that the deficiencies of the complaint could not be cured by amendment." *Franklin v. Murphy*, 745 F.2d 1221, 1235 n.9 (9th Cir. 1984) (cleaned up); *Lopez v. Smith*, 203 F.3d 1122, 1130-31 (9th Cir. 2000).

III. DISCUSSION

As courts of limited jurisdiction, "federal courts have an independent obligation to ensure that they do not exceed the scope of their jurisdiction." *Henderson ex rel. Henderson v. Shinseki*,

562 U.S. 428, 434 (2011); *Valdez v. Allstate Ins. Co.*, 372 F.3d 1115, 1116 (9th Cir. 2004) (noting that district courts are "obligated to consider sua sponte whether [they] have subject matter jurisdiction"). There are two bases for federal subject matter jurisdiction: (1) federal question jurisdiction under 28 U.S.C. § 1331 and (2) diversity jurisdiction under 28 U.S.C. § 1332. A district court has federal question jurisdiction in "all civil actions arising under the Constitution, laws, or treaties of the United States." *Id.* at § 1331. A cause of action "arises under federal law only when the plaintiff's well-pleaded complaint raises issues of federal law." *Hansen v. Blue Cross of Cal.*, 891 F.2d 1384, 1386 (9th Cir. 1989). A district court has diversity jurisdiction "where the matter in controversy exceeds the sum or value of $75,000 . . . and is between citizens of different states, or citizens of a State and citizens or subjects of a foreign state." *Id.*

Because Mr. Newanforbi's claims arise under federal law, the Court has federal subject matter jurisdiction over his complaint. So, the Court proceeds to determine whether Mr. Newanforbi's complaint states a claim.

"Congress created U nonimmigrant status as part of the Victims of Trafficking and Violence Protection Act of 2000 ('VTVPA')." *Perez Perez v. Wolf*, 943 F.3d 853, 856 (9th Cir. 2019).

> To be eligible for a U visa, a petitioner must establish that he or she: (1) "has suffered substantial physical or mental abuse as a result of having been a victim of qualifying criminal activity"; (2) "possesses information" about qualifying criminal activity; and (3) "has been helpful, is being helpful, or is likely to be helpful" to an authority "investigating or prosecuting" qualifying criminal activity.

Id. at 857. "To apply for a U visa, a petitioner must file with USCIS a Form I-918, Petition for U Nonimmigrant Status." *Id.* That form requires U visa petitioners to "obtain a certification from a Federal, State, or local law enforcement official, prosecutor, judge, or other Federal, State, or local authority investigating criminal activity." *Id.* at 863 (cleaned up). Law enforcement's "decision of whether or not to issue certification to qualify for U Nonimmigrant status is discretionary." *United States v. Biao*, No. 98CR2812-BTM, 2011 WL 607087, at *1 (S.D. Cal. Feb. 11, 2011) (citing *Orosco v. Napolitano,* 598 F.3d 222, 226 (5th Cir.2010)).